CALIFORNIA MILITARY DEPARTMENT
COUNTERDRUG TASK FORCE
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NGCA-JSD-CD-JA

13 November 2024

MEMORANDUM FOR RECORD

SUBJECT: Legal Review—Memorandum of Understanding (MOU) between California National Guard (NGCA) Counterdrug Task Force (CDTF) and the San Mateo Police Department (SMPD).

1. REFERENCES:

a. CNGBM 3100.01, National Guard Counterdrug Support, 30 JUL 21
b. California State Drug Interdiction and Counter-drug Activities Plan
c. 32 U.S.C. 112, "National Guard Counterdrug Support"
d. California Health and Saf. Code §§ 11000, et seq "California Controlled Substances Act"
e. 21 U.S.C. §§ 871, et seq, "Controlled Substances Act"

2. CNGBM 3100.01 requires a legal review prior to approval of MOUs between NGCA CDTF and any agency requesting more than 30 days of consecutive support by a validated support request letter. SMPD has properly requested support from NGCA CDTF, and the subject MOU attached hereto as Enclosure A memorializes the understanding between NGCA CDTF and SMPD for said requested support.

3. As required by the above-referenced statutes, manual, and plan, Enclosure A memorializes the understanding between NGCA CDTF and SMPD, an appropriate agency (Law Enforcement Agency or Community Based Organization), in which NGCA CDTF will provide military-unique resources for a period of more than 30 consecutive days. Per the references, Enclosure A includes and addresses all legally required topics, including setting forth the mandatory responsibilities and obligations of both parties to the MOU. Therefore, the subject MOU is legally sufficient.

4. Point of contact for this memorandum is SFC Jordan Nunn, Paralegal NCO, at (916) 369-4973 or via email at jordan.b.nunn.mil@army.mil.

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Enclosure A

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MEMORANDUM OF UNDERSTANDING
BETWEEN
CALIFORNIA NATIONAL GUARD – COUNTERDRUG TASK FORCE
AND
SAN MATEO POLICE DEPARTMENT

1. PURPOSE.

This Memorandum of Understanding (MOU) is intended to set forth the procedures, responsibilities, and obligations of the California National Guard (NGCA) Counterdrug Task Force (CDTF) and the San Mateo Police Department whereby the CDTF may provide requested support to San Mateo Police Department counterdrug (CD) activities.

2. REFERENCE.

a. 32 U.S.C. §§ 112, 502, as amended
b. CNGBM 3100.01, "National Guard Counterdrug Support"
c. State of California Drug Interdiction and Counterdrug Activities Plan
d. Cal. Const. art V, §§ 1, 7, "Executive"
e. Cal Mil. & Vet. Code §§ 140, 160, 392 "The Military Forces of the State"
f. 21 U.S.C. § 871, et seq, "Controlled Substances Act"
g. Cal. Health & Saf. Code § 11000, et seq, "California Uniform Controlled Substances Act"
h. 28 U.S.C. §§ 2671-2680, "Federal Tort Claims Act"
i. 18 U.S.C. § 1385, "Posse Comitatus Act"
j. CNGBI 2400.00A, "Acquisition and Storage of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense"
k. Guide to Equitable Sharing for State, Local and Tribal Law Enforcement Agencies
l. Annual Deputy Assistant Secretary of Defense (DASD) guidance

3. AUTHORITY.

a. 32 U.S.C. § 112 authorizes the Secretary of Defense (SecDef) to approve and provide funds for the Governor of California to utilize NGCA personnel not in federal service in support of federal, state, tribal, and local law enforcement agencies (LEA) and community-based organizations (CBO) in accordance with (IAW) CNGBM 3100.01 and the annual State Drug Interdiction and Counterdrug Activities Support Plan (State CD Support Plan). The Governor of California is the Commander-in-Chief of the NGCA, and may order it to execute the laws of the State IAW Cal. Const. art. V, §§ 1, 7, and Cal. Mil. & Vet. Code § 140.

b. 32 U.S.C. § 112 requires Department of Defense (DoD) consultation with the Office of National Drug Control Policy (ONDCP), prior to State CD Support Plan approval, for coordination of drug-control activities and related funding IAW the President's efforts to reduce illicit drug-related crime and violence as outlined in the annual National Drug Control Strategy.

c. The San Mateo Police Department is responsible for the investigation and suppression of illegal drug activities in San Mateo County. The San Mateo Police Department targets violent crime associated with gang activity, high risk crimes, and the use of illegal drugs through collaborative involvement of the region's police departments.

4. PLANNED DEPLOYMENT OF NATIONAL GUARD PERSONNEL AND/OR EQUIPMENT.

a. The role of the NGCA CDTF in CD operations is to support LEAs. All NGCA CDTF operational support to LEAs and CBOs conducting drug interdiction and CD activities will be initiated upon approval of a written request from the San Mateo Police Department and will be performed in IAW the SecDef, Governor, and Attorney General approved mission categories included in the State CD Support Plan. In order to ensure adequate mission planning and execution, San Mateo Police Department will provide specific objectives for each requested mission and designate a San Mateo Police Department point of contact.

b. San Mateo Police Department will be responsible for the physical security and safeguarding of all CDTF arms and ammunition stored in their armory. San Mateo Police Department offers storage and constant surveillance in a manned and secured armory for arms, ammunition, and equipment. The manned San Mateo Police Department armory provides security-enhancing systems and physical safeguards required by AR 190-11. CDTF Service Members will sign-in with on-duty San Mateo Police Department personnel at the San Mateo Police Department upon entrance to armory. The Watch Commander/Supervisor or designated personnel will escort the authorized Service Members to draw necessary equipment.

5. COMMAND AND CONTROL.

a. The Governor of California has appointed The Adjutant General (TAG), per Military & Veterans Code § 160, to exercise command and control of all NGCA personnel. TAG has designated the Counterdrug Coordinator (CDC) to provide direction and oversight of NGCA personnel conducting drug interdiction and CD activities. NGCA CDTF personnel will remain under military command and control at all times. TAG and CDC retain the right to recall any and all CDTF personnel or equipment from CD support to the San Mateo Police Department at any time.

b. CDTF Pilots In Command (PICs) and Aircraft Commanders (A/Cs) are responsible for all decisions affecting military aircraft, aircrew and passenger safety, and have authority to override an order for any personnel to chamber rounds or fire a weapon while on board NBCA aircraft.

6. SCOPE OF APPROVED OPERATIONS.

a. Technical Support. (Linguist; Investigative Case Analyst; Paralegal; Communications; Engineer; Subsurface/Subterrain; Counter Threat Finance Analyst; and Imagery/Map Support)
b. General Support. (Domestic Illegal Drug Suppression Operations; Transportation)
c. Counterdrug Training. (Military-Specific Technical and Tactical Training)
d. Ground Reconnaissance/Observation. (Land and Maritime Observation and Sensor Support)
e. Aerial Reconnaissance/Observation. (Rotary Wing, Fixed Wing, and Unmanned Aircraft Systems)
f. Drug Demand Reduction Operations and Coalition Development. (Anti-Drug Coalition Support)

7. FORCE PROTECTION.

a. The Governor of California authorized the NGCA CDTF to conduct armed operations in support of LEAs for force protection. TAG has delegated the authority to arm CDTF personnel to the CDC. NGCA CDTF Rules for Use of Force (RUF), certified IAW state law by the Attorney General of California, will be outlined in detail with the San Mateo Police Department during the planning phase of each mission per applicable policy, regulation, and law. CDTF personnel will not, except for in exigent circumstances, directly participate in the arrest or search of U.S. persons or become involved in the chain of custody for any evidence seized by LEAs. Exigent circumstances include situations in which immediate action is necessary to: protect LEA officers, CDTF personnel, or other civilian bystanders from death or great bodily injury; prevent the destruction of evidence; or to prevent the escape of a suspect in LEA custody.

b. The San Mateo Police Department shall be responsible for ensuring work site security and compliance with all applicable federal health, safety, and hazardous material regulations. CDTF personnel will wear the authorized military uniform or civilian attire at, and when traveling to/from their assigned duty location as a risk mitigation measure. Further, CDTF personnel will avoid unnecessary confrontation with civilians and foreign nationals encountered in the area of operations.

c. LEAs reserve the right to perform additional criminal records checks, and/or security screening of applicants in LEA offices or in positions with access to LEA information. Additional screening includes LEA conducted criminal history queries covering SM driving record, criminal record, and security clearance. CDTF personnel are not authorized to participate in polygraph or lie detector-type tests without the CDC's approval. LEAs may request additional screening for CDTF personnel. Additional screening requests must be submitted in writing by the law enforcement head of agency to the Counterdrug Commander (CDC), or designee, for approval. Applicants will be informed that such inquiries are likely to be completed after entry on duty and that rejection by LEAs may result in their involuntary early release from support of the CDTF. San Mateo Police Department may require CDTF personnel to agree to additional San Mateo Police Department physical and information security requirements.

8. PUBLIC AFFAIRS.

The San Mateo Police Department will be the lead agency for all public affairs (PA) and media relations. PA and media concerns for CDTF support will be coordinated with the CDC and CD PAO for interagency risk analysis prior releasing any information to the media. The CDTF will not disclose information related to San Mateo Police Department without explicit guidance or direction of the San Mateo Police Department (or their designated representative) and the San Mateo Police Department of Public Affairs and will ensure that PA efforts do not jeopardize the identity, safety, or security of CDTF or San Mateo Police Department personnel and equipment.

9. SPECIAL INSTRUCTIONS, REQUIREMENTS, AND/OR RESTRICTIONS.

a. CDTF personnel shall remain in a support role to the San Mateo Police Department. The San Mateo Police Department will be solely responsible for determining the legal basis for searches and observational support. This includes, but is not limited to, determining the legal requirements for the use of thermal imaging or sense-enhancing systems and obtaining necessary search warrants. CDTF personnel will not conduct cargo/mail inspection.

b. All CDTF criminal analyst/linguist activities authorized by applicable law, regulation, and policy will be strictly limited to support of LEA drug interdiction and CD activities. CDTF personnel shall not independently collect, retain, or disseminate information on United States

persons. The criminal information under analysis is the property of San Mateo Police Department and will not be retained in NGCA facilities or databases, nor disseminated. CDTF personnel providing approved analytical/linguistic support to LEAs will comply with the San Mateo Police Department rules and regulations for information and operational security. CDTF personnel will not participate in real-time conversation monitoring (wire taps), active interview translation, or direct interrogation activities.

c. CDTF personnel will neither be deputized nor cross-designated with expanded law enforcement powers, or otherwise conferred additional investigative authority. CDTF support is designed to enhance the effectiveness of the San Mateo Police Department and assigned duties must be consistent with the unique military capabilities of assigned personnel. Such support excludes secretarial, janitorial, or receptionist type duties.

d. The CDTF is required to provide timely reporting of drug interdiction and CD support activities/statistics per applicable regulation, policy, and law. When necessary, and to the extent practicable, San Mateo Police Department will provide the CDTF with illicit drug detection, deterrence, disruption, and curtailment statistics (i.e. seizures, arrests, convictions) directly attributed to CDTF support. Law enforcement and case sensitive information will not be included in these reports.

e. The CDTF will investigate workplace/mission accidents or injuries involving CDTF personnel and/or equipment. The San Mateo Police Department will provide a liaison to the military investigation team, as required. CDTF personnel will not participate in San Mateo Police Department internal investigations without the CDC's express consent.

10. LIABILITY

a. It is agreed that the officers, agents, employees and/or volunteers of the San Mateo Police Department shall not be deemed employees of the NGCA CDTF for workers' compensation, other insurance coverage, or for any other purpose. Likewise, the officers, agents, and employees of the NGCA CDTF shall not be deemed employees of the San Mateo Police Department for worker's compensation, other insurance coverage or for any purpose. Each party will be solely responsible for processing any claims arising out of property damage or injuries to, or death of its own employees and agents that occur as a result of the officer, agent or employee's action(s) or omission(s) while that person is in the performance of his/her duty in accordance with applicable state and federal law.

b. CDTF personnel in a 32 U.S.C. § 502(f) duty status under the command and control of the NGCA and acting within the scope of their approved duties are protected from civil liability in their individual capacity by the Federal Tort Claims Act (FTCA) under 28 U.S.C. §§ 2671-2680; and are protected from state civil and criminal liability under Cal. Mil. & Vet. Code § 392.

11. ASSET FORFEITURE AND EQUITABLE SHARING.

The CDTF is considered a law enforcement agency solely for purposes of asset forfeiture equitable sharing. It is the intent of all parties to the agreement that assets seized by San Mateo Police Department as a result of operations or investigations supported by the CDTF will be equitably shared if forfeited administratively or judicially pursuant to State and Federal law. It is understood decisions made with respect to the equitable sharing of property administratively forfeited by the San Mateo Police Department is at the discretion of the Riverside County Sheriff's Office. The disposition of assets forfeited judicially is within the discretionary authority

of the U.S. Department of Justice. All decisions with respect to equitable sharing will be made in accordance with the *Attorney General's Guidelines on Seized and Forfeited Property*.

12. RENEGOTIATION AND TERMINATION OF AGREEMENT.

Any and all modifications to this MOU must be mutually agreed upon by all parties in writing. This MOU will remain in effect while changes or amendments are being coordinated. This MOU is effective immediately upon signature of all parties and will remain in effect until terminated by either party in writing. This MOU will be reviewed annually by the CDTF to ensure appropriateness and adequacy for support provided.

13. NO PRIVATE RIGHT CREATED.

This MOU does not create any right or benefit, substantial or procedural, enforceable at law or equity, by a party against the United States, its departments, agencies, or other entities, its employees, its officers, or any other person.

CALIFORNIA NATIONAL GUARD COUNTERDRUG TASK FORCE

12/06/24
TYLER H. SMENTEK (Date)
LTC, CAARNG
Counterdrug Commander

SAN MATEO POLICE DEPARTMENT

Dave Peruzzaro AIO 10/17/24
Dave Peruzzaro (Date)
Captain
Support Services

CALIFORNIA NATIONAL GUARD

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MARLENA A. DECELLE (Date)
Brigadier General
Director, Joint Staff